I calmed him and said: ‘To save or not to save you is in His hands. As to me you know my way. I can but try to save you by means of confession.’

The good Parsi felt deeply mortified.

‘But is not my confession before you enough?’ he asked.

‘You have wronged not me but Government. How will the confession made before me avail you?’ I replied gently.

‘Of course I will do just as you advise, but will you not consult with my old counsel Mr —? He is a friend too,’ said Parsi Rustomji.

Inquiry revealed that the smuggling had been going on for a long time, but the actual offence detected involved a trifling sum. We went to his counsel. He perused the papers, and said: ‘The case will be tried by a jury, and a Natal jury will be the last to acquit an Indian. But I will not give up hope.’

I did not know this counsel intimately. Parsi Rustomji intercepted: ‘I thank you, but I should like to be guided by Mr Gandhi’s advice in this case. He knows me intimately. Of course you will advise him whenever necessary.’

Having thus shelved the counsel’s question, we went to Parsi Rustomji’s shop.

And now explaining my view I said to him: ‘I don’t think this case should be taken to court at all. It rests with the Customs Officer to prosecute you or to let you go, and he in turn will have to be guided by the Attorney General. I am prepared to meet both. I propose that you should offer to pay the penalty they fix, and the odds are that they will be agreeable. But if they are not,